

24STLC00282 24STLC00282

County: los-angeles

Division: Civil Law and Motion

Department: 26

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Case Number: 24STLC00282 Hearing Date: August 3, 2026 Dept: 26

TENTATIVE RULING:

Defendant Benjamin Amar's (1)

Motion to Compel Plaintiff Miguel Romero's Responses to Interrogatories - Form and Special, Set One and Request for Sanctions; and (2) Motion to Compel Plaintiff Miguel Romero's Responses to Demand for Inspection and Production of Documents, Set One and Request for Sanctions, are denied without prejudice.

Defendant Benjamin Amar's (1)

Motion to Compel Plaintiff Rocio Zavala's Responses to Interrogatories - Form and Special, Set One and Request for Sanctions; and (2) Motion to Compel Plaintiff Rocio Zavala's Responses to Demand for Inspection and Production of Documents, Set One and Request for Sanctions, set for hearing on 08/04/2026 are advanced to today, and denied without prejudice on the same grounds.

Defendant Benjamin Amar's (1)

Motion to Compel Plaintiff Alejandro Bermudez's Responses to Interrogatories - Form and Special, Set One and Request for Sanctions; and (2) Motion to Compel Plaintiff Alejandro Bermudez's Responses to Demand for Inspection and Production of Documents, Set One and Request for Sanctions, set for hearing on 08/05/2026 are advanced to today, and denied without prejudice on the same grounds.

Analysis:

On December 10, 2025, Defendant Benjamin Amar ("Defendant") served Form Interrogatories, Set One, Special Interrogatories, Set One, and

Request for Production of Documents, Set One, on Plaintiff Miguel Romero ("Plaintiff Romero"). (Motions, Yeremian Decl., Exh. A.) Despite a meet and confer effort, to date, Plaintiff Romero has not served responses to the discovery. (Id. at ¶¶5-6 and Exhs. B-C.) Defendant filed the instant (1) Motion to Compel Plaintiff Miguel Romero's Responses to Interrogatories - Form and Special, Set One and Request for Sanctions; and (2) Motion to Compel Plaintiff Miguel Romero's Responses to Demand for Inspection and Production of Documents, Set One and Request for Sanctions, on June 24, 2026. The Motions were served on Plaintiff Romero through Attorney Sergei N. Gladkov, Esq. by electronic mail on the same date. No opposition has been filed to date.

Discussion

The discovery requests served on Plaintiff Romero do not comply with Code of Civil Procedure section 94, which allows only 35 written discovery requests in the Limited Civil Court unless otherwise authorized by court order or by stipulation. (Code Civ. Proc., § 94, subd. (a); § 95.) Defendant served Plaintiff Romero with more than 35 form interrogatories alone. (Motions, Yeremian Decl., Exhs. A.) The Court additionally notes that the form interrogatories served on Plaintiff Romero include subparts, which also violates subdivision (a)(1) of Code of Civil Procedure section 94.

Based on the foregoing, the instant discovery Motions are denied. The Court will not grant motions to compel responses with respect to discovery propounded in violation of the Code of Civil Procedure.

Additionally, Defendant filed combined motions to compel responses with respect to two separate sets of discovery: (1) Form Interrogatories, Set One; and (2) Special Interrogatories, Set One. Filing a request to compel responses to two separate sets of discovery as a single motion creates the following problems. First, it negatively impacts the Court's calendar by placing more motions on the calendar than slots have been provided by the online reservation system. Second, it results in confusion in the motion papers regarding the arguments and evidence with respect to each request. Finally, combining multiple discovery sets into a single motion allows the moving party to avoid paying the requisite filing fees. Statutorily required filing fees are jurisdictional and "it is mandatory for the court clerks to demand and receive statutorily required filing fees." (See *Duran v. St. Luke's Hospital* (2003) 114 Cal.App.4th 457, 460.)

Conclusion

Based on the foregoing, Defendant Benjamin Amar's (1) Motion to Compel Plaintiff Miguel Romero's Responses to Interrogatories - Form and Special, Set One and Request for Sanctions; and (2) Motion to Compel Plaintiff Miguel Romero's Responses to Demand for Inspection and Production of Documents, Set One and Request for Sanctions, are denied without prejudice.

Defendant

Benjamin Amar's (1) Motion to Compel Plaintiff Rocio Zavala's Responses to Interrogatories - Form and Special, Set One and Request for Sanctions; and (2) Motion to Compel Plaintiff Rocio Zavala's Responses to Demand for Inspection and Production of Documents, Set One and Request for Sanctions, set for hearing on 08/04/2026 are advanced to today, and denied without prejudice on the same grounds.

Defendant

Benjamin Amar's (1) Motion to Compel Plaintiff Alejandro Bermudez's Responses to Interrogatories - Form and Special, Set One and Request for Sanctions; and (2) Motion to Compel Plaintiff Alejandro Bermudez's Responses to Demand for Inspection and Production of Documents, Set One and Request for Sanctions, set for hearing on 08/05/2026 are advanced to today, and denied without prejudice on the same grounds.

Moving party to give notice.